TERMS & CONDITIONS

KAIROS ENTERPRISES

Website Use & Digital Product Development Services

Important: These Terms & Conditions provide a general public-facing framework. Project-specific quotations, proposals, Statements of Work, service agreements or other written agreements may contain additional or different terms. For project-specific matters, the applicable written project agreement will prevail. This document should be reviewed by a qualified legal professional before publication or use for a particular engagement.

1. About Kairos Enterprises

Kairos Enterprises is a proprietor firm engaged in the design and development of digital products and technology solutions. These Terms apply to use of the Kairos Enterprises website and, where applicable, professional services provided by Kairos Enterprises.

For these Terms, “Kairos”, “we”, “us” or “our” means Kairos Enterprises, and “client”, “you” or “your” means the person, business, organization or other entity using our website or engaging our services.

2. Acceptance of These Terms

By accessing or using our website, contacting us for services, requesting a quotation, approving a proposal, or engaging Kairos Enterprises for a project, you acknowledge that you have read, understood and agreed to these Terms to the extent applicable.

If you do not agree with these Terms, please do not use the website or engage our services.

3. Website Use

Our website provides information about Kairos Enterprises, our capabilities and our services. We aim to keep information accurate and useful, but content may be updated, changed or removed without prior notice.

You must not use the website for an unlawful, fraudulent, abusive or unauthorized purpose, or in a way that could damage, disrupt or compromise the website or its security.

4. Services

Depending on the project and agreed scope, Kairos may provide:

- Web development
- Software development
- Mobile application development

- UI/UX design
- Other custom digital product development services agreed in writing

5. Project Engagement and Scope

Work begins based on requirements communicated and agreed with the client. The applicable quotation, proposal or project document should define, as applicable, features, deliverables, platforms, design requirements, integrations, timelines and commercial terms.

Estimates are based on the requirements and assumptions available when prepared. Material changes in requirements may require revision of scope, price or timeline.

6. Quotations, Estimates and Scope Changes

A quotation covers the work expressly included in it. Features, integrations, revisions or other work not included may be treated as additional work.

Scope changes are an important commercial matter. Changes outside the agreed scope may incur additional charges and/or extend the delivery timeline. Where practical, Kairos will discuss revised scope, cost and timing and obtain written approval before implementing additional work.

IMPORTANT — SCOPE CHANGES: Work outside the agreed project scope may be charged separately and may extend the delivery timeline. Clients should review and approve scope changes before additional work begins.

7. Payment Terms

Unless a project-specific agreement states otherwise, the standard project payment structure is:

Milestone	Payment
Project initiation	40%
Mid-development milestone	20%
Final delivery	40%

Applicable taxes/GST and other statutory charges, where applicable, are additional unless expressly stated otherwise.

If a milestone payment is delayed, Kairos may pause development and related work until the outstanding payment is received. The project timeline and delivery date may consequently be extended.

8. Taxes and Third-Party Costs

Unless expressly included in a quotation, the client is responsible for applicable taxes/GST and third-party costs required for the project.

- Domain registration and renewal
- Web hosting and server infrastructure
- Google Play or Apple Developer accounts
- Payment gateway charges

- SMS/OTP services
- Email services
- Maps, APIs and other external services
- Plugins, themes, subscriptions and licenses
- Cloud services and other external infrastructure

9. Client Responsibilities

The client is responsible for providing information, materials, approvals and access reasonably required for the project in a timely manner.

- Logos, brand assets and design materials
- Images, videos and written content
- Trademarks and other intellectual-property materials
- Business information and required data
- API credentials and access details
- Hosting, domain, app-store and other relevant accounts
- Timely feedback, decisions, approvals and testing

The client represents that it has the necessary rights, permissions and authority to provide materials, data, content, trademarks, credentials and other resources supplied to Kairos.

10. Client-Caused Delays

If development or delivery is delayed because the client does not provide required content, credentials, information, feedback, approvals, access or decisions within the required time, the agreed timeline may be revised accordingly. Kairos will not be responsible for delays reasonably caused by such client-side dependencies.

11. Delivery, Review and Acceptance

Deliverables will be provided according to the agreed scope and delivery plan. The client is expected to review deliverables and communicate material issues or requested corrections within a reasonable period.

Delivery or acceptance may be documented through email, messaging, project-management tools, written approval, deployment, use of the deliverable or another reasonable form of confirmation.

12. Intellectual Property and Ownership

Subject to full and final payment of all amounts due for the relevant project, ownership of the agreed custom deliverables, including custom source code, designs and other project-specific deliverables, will be transferred to the client to the extent agreed for that project.

Until all amounts due have been paid in full, Kairos may withhold final transfer, source-code handover, credentials or other final deliverables to the extent permitted by the applicable agreement and law.

Third-party software, open-source components, APIs, fonts, stock assets, plugins and other third-party materials remain subject to their respective licenses and terms.

13. Confidentiality and Non-Disclosure

Kairos respects confidential business, technical and commercial information shared by clients. Where the parties enter into a separate NDA or confidentiality agreement, that agreement will govern the confidentiality obligations covered by it.

Where no separate NDA exists, each party should use reasonable care not to intentionally disclose confidential information received from the other party, except where disclosure is required by law or necessary to perform agreed services.

14. Portfolio and Marketing Rights

After a project has been launched or otherwise made public, Kairos may, unless otherwise agreed in writing, identify the project and display reasonable examples of the work in its portfolio, website, presentations and marketing or social-media materials.

A client may request that a project, brand, screenshots, name or other identifying material be kept confidential. Kairos will consider and document such restrictions in writing, and agreed confidentiality restrictions will be respected.

15. Support, Bug Fixes and Maintenance

Kairos may provide a post-launch bug-fix period of approximately 15 to 30 days, depending on the project and as specified in the applicable quotation or agreement.

This limited period is intended for correction of genuine defects in agreed deliverables and does not automatically include new features, redesigns, requirement changes, third-party service issues, changes made by others or enhancements requested after delivery.

Ongoing maintenance, updates, feature additions, monitoring, hosting or technical support may be provided under a separate paid support or maintenance arrangement.

16. Third-Party Services and Dependencies

Digital products may depend on third-party platforms, APIs, hosting providers, app stores, payment gateways, messaging providers, cloud infrastructure or other external services. Kairos does not control their availability, policies, pricing, security or continued operation.

Third-party outages, changes, suspensions, pricing changes or policy changes may affect a project. Kairos may need to modify, replace or suspend affected functionality, subject to the project agreement.

17. Cancellation and Termination

Either party may request termination or cancellation in accordance with the applicable project agreement. If a project is cancelled after work has commenced, the client remains responsible for

amounts due for work completed and approved or committed project costs up to the effective cancellation date.

Advance and milestone payments already made are generally non-refundable once the corresponding work has commenced, except where a written agreement provides otherwise or a refund is required by applicable law.

On termination, Kairos may suspend access to unfinished deliverables and may withhold final deliverables or transfer of ownership until outstanding amounts are settled, subject to applicable law and the project agreement.

18. Warranties and Limitations

Kairos will use reasonable professional skill and care in providing agreed services. Except as expressly stated in a written project agreement, services and website content are provided without guarantees regarding uninterrupted availability, error-free operation, particular business outcomes, revenue, rankings, downloads, user numbers or other results.

Software may depend on operating systems, browsers, devices, networks, third-party services and other factors outside Kairos's control.

19. Limitation of Liability

To the maximum extent permitted by applicable law, Kairos Enterprises will not be liable for indirect, incidental, special, consequential or punitive losses, or for loss of profits, revenue, business opportunities, data or goodwill arising from or relating to the services, except to the extent such limitation is prohibited by law.

To the maximum extent permitted by law, Kairos's aggregate liability arising from a specific project will not exceed the total professional fees actually paid to Kairos for that project, unless a different limit is expressly stated in a signed written agreement.

Nothing in these Terms excludes or limits liability that cannot lawfully be excluded or limited.

20. Client Indemnity

To the extent permitted by law, the client agrees to indemnify and hold Kairos Enterprises and its personnel harmless from third-party claims, losses or reasonable costs arising from materials, content, data, trademarks, instructions or other resources supplied by the client that infringe third-party rights, violate applicable law, or are used by Kairos in accordance with the client's instructions.

21. Data Protection and Privacy

Personal information submitted through the website or during a project may be handled in accordance with Kairos Enterprises' Privacy Policy and applicable data-protection laws. The Privacy Policy is separate from these Terms and should be read together with them where personal data is involved.

22. Website Content and Intellectual Property

Unless otherwise stated, content and materials published on the Kairos website, including text, graphics, branding, layout and other original materials, are owned by or used with permission by Kairos Enterprises and may not be copied, reproduced, modified, distributed or commercially exploited without appropriate authorization.

Third-party trademarks, logos, names and other intellectual property displayed on the website belong to their respective owners.

23. Force Majeure

Kairos will not be responsible for failure or delay caused by circumstances beyond its reasonable control, including major internet or infrastructure failures, natural disasters, governmental actions, war, civil unrest, epidemics, cyber incidents, failures of third-party platforms, power outages or other events that could not reasonably be prevented or controlled.

Where reasonably possible, Kairos will communicate material delays and work with the client on a revised timeline or alternative solution.

24. Governing Law

These Terms and the relationship between Kairos Enterprises and its clients will be governed by the laws applicable in India, subject to applicable mandatory laws and any project-specific written agreement.

25. Jurisdiction and Dispute Resolution

The parties should first attempt in good faith to resolve disputes through direct discussion and reasonable negotiation.

Subject to applicable law and any project-specific written agreement, courts having jurisdiction in Lucknow, Uttar Pradesh, India, will have jurisdiction over disputes arising from or relating to these Terms or the services.

26. Changes to These Terms

Kairos Enterprises may update these Terms from time to time to reflect changes in its services, business practices, technology or applicable legal requirements. The updated version will be published on the website with an updated effective date where appropriate.

Changes to these website Terms will not automatically rewrite or modify a separately signed project agreement unless that agreement expressly permits such modification.

27. Severability

If any provision of these Terms is found to be invalid, unlawful or unenforceable, that provision will be interpreted or limited to the minimum extent necessary, and the remaining provisions will continue to apply to the extent permitted by law.

28. Entire Understanding for Website Terms

These Terms provide a general framework for website use and Kairos Enterprises' services. Project-specific quotations, proposals, Statements of Work, service agreements, NDAs and other written agreements may contain additional provisions.

For project-specific commercial, technical, delivery, ownership, support or confidentiality matters, the applicable project-specific written document will prevail to the extent of any inconsistency.

29. Contact Information

For questions regarding these Terms or Kairos Enterprises' services:

Business	Kairos Enterprises
Website	KAIROSWORKS.IN
Email	Kairos.techsupport@gmail.com
Phone / WhatsApp	+91 9044312362

Effective Date: 9 September 2026

Recommended: Have this document reviewed by a qualified legal professional before publishing or relying on it for a specific project.